AVIM INVESTMENTS (PRIVATE) LIMITED
versus
LIVETOUCH INVESTMENTS (PRIVATE) LIMITED
and
SHERIFF OF THE HIGH COURT OF ZIMBABWE, GWERU

HIGH COURT OF ZIMBABWE
**DEMBURE J**
HARARE; 17 & 23 March 2026

**Urgent Chamber Application**

*A Bangidza,* for the applicant
*G Nyoni,* for the 1st respondent
No appearance for the 2nd respondent

**DEMBURE J:**

**INTRODUCTION**

1. Before me is an opposed urgent chamber application for leave to execute pending appeal. The applicant seeks an order that the judgment of this court handed down on 12 February 2026 in Case No. HCH 5409/24 be carried into execution notwithstanding the appeal noted by the first respondent pending in the Supreme Court in Case No. SC 209/26. I heard arguments on the two preliminary points raised by the first respondent on 17 March 2026 and reserved judgment *sine die*.

**THE FACTS**

2. On 12 February 2026, this court handed down a judgment in favour of the applicant against the first respondent, which judgment is sound in money. In particular, the court ordered as follows:

> "1. The application succeeds.
> 2. The 1st Respondent shall pay to the Applicant the sum of US$380,000.00 or its equivalent in local currency at the prevailing interbank rate as at the time of payment.

3. In the event that the 1st Respondent fails to pay as stated in paragraph 2 above, the 2nd Respondent be and is hereby authorised to proceed with execution to recover the said sum.
4. The 1st Respondent shall pay the cost of this application."

3. The first respondent proceeded to note an appeal against the whole judgment in the Supreme Court on 13 February 2026. The appeal was initially filed in the Supreme Court at Bulawayo in Case No. SCB 33/26. About thirteen (13) days later, on 26 February 2026, the applicant filed an urgent chamber application for leave to execute pending appeal under Case No HCH 921/26. On that same day, the first respondent withdrew its appeal and re-filed the appeal in the Supreme Court at Harare in Case No. SC 209/26. The urgent chamber application was later withdrawn on 2 March 2026, and on the same date, another urgent chamber application was filed, now under Case No. HCH 962/26. The said application was later withdrawn on 5 March 2026.

4. Following the withdrawal of the urgent chamber application under HCH 962/26, the applicant filed another urgent chamber application on 6 March 2026 under Case No. HCH 1074/26. In those proceedings, the first respondent filed a notice of opposition, and the matter was set down for hearing on 10 March 2026. There was no appearance for both parties at the scheduled time of the virtual hearing, and the matter was struck off the roll with no order as to costs. After this order, the current application was then filed on 13 March 2026.

5. The applicant contended that the first respondent's indebtedness is not in dispute and that the appeal is devoid of any merit. That the withdrawal and refiling of the appeal was an abuse of process, and the appeal cannot be permitted to suspend the execution of the court's judgment. It was further pleaded that the applicant is entitled to recover the sum of US$380,000.00, the judgment debt. There was a further allegation that the applicant would suffer irreparable harm if the matter is not treated as an urgent matter, as the security for the debt, which is the stockpile of coke fines, was being eroded due to the rainy season and would continue to degrade.

6. In the certificate of urgency, it was also contended that it would be in the public interest and in the interests of preserving the integrity of the administration of justice that orders of the court should not be rendered nugatory by meritless appeals. The applicant accordingly sought leave to execute despite the pending appeal on an urgent basis.

7. The first respondent raised two points *in limine,* namely that the matter was not urgent and that there was no valid application before the court, as there was no applicant's founding affidavit. It was prayed that the application be struck off the roll on that basis. The first respondent also addressed the merits of the application. It contended that the grounds of appeal disclosed an arguable case, that the appeal was filed within the prescribed period, and the withdrawal was not an abuse of court but was simply to correct some errors that were on the face of that appeal. It denied that the applicant had any coal fines available. It was also argued that the applicant would not suffer any irreparable harm, as the applicant had failed to prove that it had the coal fines.

8. Several averments were also made in the opposing affidavit, including that the first respondent had paid US$803,000.00 and that the applicant had failed to avail over US$500,000 worth of coal fines. It denied that there was any admitted debt. It contended that there were no special circumstances warranting the granting of the order sought.

9. At the hearing, the parties, legal practitioners, made extensive submissions on the two preliminary points.

**THE POINTS *IN LIMINE***

10. Mr *Nyoni* raised two points *in limine* and argued that I must deal with the issue of the validity of the application first before dealing with the second preliminary point on urgency. He thus firstly addressed the court on the validity of the founding affidavit and then thereafter addressed me on the issue of urgency. I raised a point of law that when an issue of urgency is raised, the court must first determine that issue before it proceeds to determine any other points *in limine*.

11. It is settled that when the issue of urgency is raised in an urgent chamber application together with other points *in limine,* the court must first determine whether the matter

meets the requirements of urgency before it can deal with the other issues. Once the court finds the matter not urgent, that should be the end of the court's curiosity. It cannot then proceed to determine any other points *in limine*. It can only determine the other points *in limine* raised once it upholds the urgency of the matter before it. The legal position was aptly affirmed in *Chitsaka & Ors v Heyns & Ors* SC 46/23 at p 13, where MAKONI JA, pronouncing the unanimous decision of the Supreme Court, said:

> "When seized with an urgent court or chamber application and points in *limine* are taken, including that the matter is not urgent, the first point to be determined is whether the matter meets the requirements of urgency. If the court determines that the matter is urgent it then goes on to deal with the other points in *limine*, starting with those that have the potential to terminate the proceedings. If the court *a quo* had adopted the correct approach and found, as it did, that the matter was not urgent, it should have ended there. The issue whether the application before the court was valid or not would then have been properly dealt with on the ordinary roll." (*my emphasis*)

12. I am equally faced with the same situation which the Supreme Court has already resolved. The point of law that the application's founding affidavit was not a valid affidavit and, therefore, that there was no valid application before the court can only be determined after I am satisfied that the matter before me is urgent. I must deal with the question of urgency first before anything else. I will now turn to determine the first point *in limine* relating to urgency. The question is whether or not this application is urgent.

**THE QUESTION OF URGENCY**

**SUBMISSIONS MADE ON THE POINT *IN LIMINE***

13. Mr *Nyoni* submitted that the matter is not urgent to warrant enrolment on the urgent roll. He reinforced the points made in the opposing affidavit. He contended that there is a right to appeal, and the default position is that the appeal suspends the judgment. It was argued that this matter relates to the payment of US$380,000.00, and the issue of this payment was raised as far back as December 2023, equally arising from an urgent chamber application in Case No. HCMSV 649/23. The matter was struck off the roll by MAWADZE J (as he then was) for lack of urgency. The argument of urgency was essentially the same in this application that the applicant sought to be paid US$380,000.00.

14. Counsel also argued that, secondly, the argument was that the applicant had stockpiles of coal fines at Hwange, which were being degraded. The issue of urgency has never been about anything but the payment of US$380,000.00 against that the coal fines were being degraded at Hwange. The same argument was again raised in HCH 3062/24 which application was basically the same as the one filed in HCH 5409/24, save for the latter being an urgent court application. The same argument was raised in the matter disposed of on 12 February 2026. There was also a stay of execution through a Provisional order granted by MAXWELL J. There can be no urgency at this point simply because a party say I must be paid. That is inadequate. One must say why it cannot wait. That it cannot wait is what the court must determine. A judgment sound in money has dire consequences. There is no urgency to depart from the default position to allow the parties to be heard.

15. It was further submitted that there was no justification for the matter to be heard on an urgent basis. If the coal fines are being degraded, it is for the first respondent to be concerned. It has never been a basis for urgency to say that the appeal is on a technicality. The order granted by this court non-suited the respondent, and the respondent has appealed on that point. It has the right to be heard and access to justice arising from the right to appeal. The urgency has not been established.

16. Mr *Nyoni* went on to argue that the other basis of the urgency was that of the withdrawal and refiling of the appeal. The respondent, after noticing some errors, withdrew and filed the appeal in the Supreme Court in Harare, as the matter was heard in Harare. The appeal was filed under SC 209/26. The appeal was filed within fifteen days; it cannot be said that the refiling was dilatory. It is not correct that there is an admission of the debt. The first respondent attached some acknowledgements of receipt to show what was paid. That there is judgment debt, and admissions cannot be the basis of urgency.

17. It was also submitted that the argument that the appeal is meritless is also not a basis for urgency. The issue of irreparable harm was dealt with by MAWADZE J (as he then was). There was no evidence of stockpiles of coal fines. The issue was about the money owed. It can wait, and the amount is valued in United States dollars. He further argued that it was not correct that there was absence of an alternative remedy. The order can be

enforceable once the appeal is disposed of in the applicant's favour. He argued that the balance of convenience favours that the appeal be heard as the order is sound in United States dollars. He also contended that there was nowhere in its papers that the applicant makes reference to the fact that it supplied coal fines. Looking at the history of the matter, this is not a matter where the court can allow execution now. The position has been the same since December 2023. He maintained that this is not a matter which can be heard on an urgent basis.

18. Conversely, Mr *Bangidza* submitted that what happened in 2023, and the order by MAWADZE J (as he then was), relate to completely different circumstances from what was obtaining now. He argued that this is an urgent chamber application for leave to execute pending appeal. What triggers this application is the noting of an appeal. The need to act arose when the applicant became aware of the appeal. See *Mupandanyama & Anor v Mushiringi & Ors* HH 239/23. This case was cited in *Mashonganyika v Mukuzunga & Ors* HH 476/24. It is incomprehensible to say the urgency arose before 12 February 2026.

19. Counsel further argued that the applicant had always acted with urgency. An appeal was filed and withdrawn. When it was withdrawn, the applicant filed another application. Judgments have consequences, and there is nothing special about the respondent's situation. There are dire consequences for all parties, but the court must consider where the balance of hardships lies. At p 32, there is an admission of the amount owed. The filing in Bulawayo was to delay execution. It highlights how the respondent was acting in bad faith. He argued that there was irreparable harm to the applicant. The rains do not favour the applicant, and it may get to a point where the respondent would say the *merx* does not exist.

20. It was also submitted that the issue of the exchange rate must be viewed in the context of the geopolitical environment, where even a strong currency can still be affected. He argued that the respondent did not care and wanted to prolong the case regardless of the outcome. He maintained that the matter was urgent. The application is *sui generis,* and it was triggered on 12 February 2026. The harm must be considered as from 12 February 2026 to date.

21. Mr *Nyoni*, in reply, argued that the issue of urgency is not triggered by an appeal. That has never been the basis for urgency. That in December 2023, that is when the issue of payment of US$380,000.00 started. The granting of the order on its own does not create urgency. The court must take into account the context. He argued that there are no admissions. The first respondent, in its own affidavit, has repeatedly said it does not owe US$380,000.00. The court does not decide matters with its eyes closed. In para 44 of its opposing affidavit, the respondent avers that before MAXWELL J, the applicant failed to prove that it had coal fines. The issue of the exchange rate does not arise in the founding affidavit. The money is sound in hard currency. The geopolitical issue should not concern the court. Counsel insisted that, for the reasons also stated in the opposing affidavit, there was no urgency.

**THE LAW ON URGENCY**

22. The requirements of urgency are well-established. The urgency contemplated by the rules of court does not concern itself with self-created urgency. Thus, it is trite that a matter is urgent if it cannot wait in the sense that if it is not dealt with immediately, irreparable prejudice will result to the applicant. Urgency is normally considered from a time and consequence dimension. The law was succinctly set out in *Kuvarega* v *Registrar General & Anor* 1998 (1) ZLR 188(H), where the court stated that:

> "What constitutes urgency is not only the imminent arrival of the day of reckoning; a matter is urgent, if at the time the need to act arises, the matter cannot wait. Urgency which stems from a deliberate or careless abstention from action until the dead-line draws near is not the type of urgency contemplated by the rules. It necessarily follows that the certificate of urgency or the supporting affidavit must always contain an explanation of the non-timeous action if there has been any delay." (*my emphasis*)

23. In the case of *Kuvarega* (*supra*), CHATIKOBO J further held that:

> "For a court to deal with a matter on an urgent basis, it must be satisfied of a number of important aspects. The court has laid down guidelines to be followed. If by its nature the circumstances are such that the matter cannot wait in the sense that if not dealt with immediately irreparable prejudice will result, the court can be inclined to deal with it on an urgent basis. Further, it must be clear that the applicant did on his own part treat the matter as urgent. In other words, if the applicant does not act immediately and waits for doomsday to arrive, and does not give a reasonable explanation for that delay in taking

> action, he cannot expect to convince the court that the matter is indeed one that warrants to be dealt with on an urgent basis…" (*my emphasis*)

**APPLICATION OF THE LAW TO THE FACTS**

24. I must determine whether this application is urgent. It is trite that the application for leave to execute pending appeal is *sui generis* and interlocutory in nature. It is triggered by the noting of an appeal. Without such an appeal, it cannot be made. See *Mupandanyama* and *Mashonganyika* cases (*supra*). The urgency must be determined in the context of when the need to act arose, and also whether there can be irreparable harm to an extent that the matter cannot wait to be determined on the ordinary roll or join the 'queue' as it were. There is no doubt in this case that the need to act arose the moment the first respondent filed an appeal on 13 February 2026, following the order granted by this court on 12 February 2026. The first respondent filed the first appeal under Case No. SCB 33/26. I agree that urgency is not established merely by the fact that the court has issued an order for payment of a debt.

25. The applicant ought to have treated the matter with urgency from the moment the appeal was filed. It is common cause that the applicant only approached this court thirteen (13) days later, on 26 February 2026. There was no explanation proffered as to why it did not approach the court immediately following the appeal for urgent relief. Following the withdrawal of the appeal filed with the Supreme Court in Bulawayo and the refiling of the appeal at Harare under SC 209/26 on 26 February 2026, the applicant could only withdraw its application and refile another one on 2 March 2026. The applicant did not give any reasonable explanation for that further delay, save to allege that it acted promptly in refiling another application.

26. There is also no dispute that the other urgent chamber application under Case No HCH 1074/26 filed on 6 March 2026 was set down for hearing on 10 March 2026. The approach taken by the applicant in explaining the default is unsatisfactory. In para 25 of the founding affidavit, it is simply stated as follows:

> "The matter is extremely urgent. Applicant had filed an urgent chamber application under HCH1074/26 however the notification on the IECMs system only reflected on the 11 of March at 12:51 a day after the initial set down of 10 March 2026 at 4:00 pm. A

> screenshot of the notification is attached hereto as Annexure "F". It was 30 minutes later that my legal practitioners received a notification with the pronouncement of the decision in the case indicating that the matter had been struck of the roll."

There was no confirming affidavit from the legal practitioner who received the notification, and the applicant could not give a satisfactory explanation for a default where blame lies with the legal practitioners for non-compliance with the court rules without attaching a supporting affidavit from the legal practitioners. It is trite that the legal practitioner's affidavit must be attached for any explanation for a default or delay to be acceptable. The position was restated in *Jockstar Investments (Pvt) Ltd v Dzumbira & Anor* SC 104/25 at p 9, where MATHONSI JA stated as follows:

> "It is now settled as well that, where the failure to comply with the rules is blamed on the applicant's legal practitioner, a supporting affidavit to that effect must be elicited from the said legal practitioner. This was stated in *Riozim Limited* v *Dixon-Warren N.O* SC 21/23 at p 9 thus:
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> > "Further, having blamed the legal practitioner for its failure to comply with the rules, the applicant failed to furnish this Court with a supporting affidavit of the legal practitioners concerned. In this regard see *Diocese of Harare* v *The Church of the Province of Central Africa* SC 9/10. The applicant's explanation cannot therefore be adequate in the absence of a supporting affidavit from the legal practitioner who is blamed for the non-compliance with the rules."

27. It is clear that there was no acceptable explanation for the applicant's failure to attend the hearing, resulting in the application being struck off the roll. The result was that the applicant then filed this application on 13 March 2026, a month later after the first appeal was lodged. Given the circumstances, the urgency can only be self-created. It cannot be accepted that the applicant acted with the urgency that showed that the matter cannot wait. The law is clear that where the applicant fails to act timeously, there must be a reasonable explanation for the delay. See *Sibanda v Sibanda & Ors* HH 198/21, where the court held that:

> "In summary, the applicant must act promptly when the need to act arose and must show that if the court does not hear the matter urgently he/she will suffer irreparable harm. Where the applicant fails to act timeously, he/she has a duty to give a reasonable explanation for the delay. In my view, it is insufficient to merely show that irreparable harm will be suffered. The applicant must treat the matter as urgent and this can be discerned from the action taken vis-à-vis the time when the apprehension of harm is realized." (*my emphasis*)

28. It is apparent that the applicant's legal practitioners adopted a very casual approach and could not convince me of the urgency of the matter, given their overall conduct of the applicant's case.

29. The court must further take into account the context of the whole dispute and determine whether it can be said that if the court fails to hear the matter on an urgent basis, the applicant might as well state that it would irretrievably lose the right or interest it seeks to protect. Thus, in *Documents Support Centre (Pvt) Ltd* v *Mapuvire* 2006 (2) ZLR 240 (H), MAKARAU JP (as she then was) had this to say:

> "I understand CHATIKOBO J in the above remarks to be saying that a matter is urgent if when the cause of action arises giving rise to the need to act, the harm suffered or threatened must be redressed or arrested there and then for in waiting for the wheels of justice to grind at their ordinary pace, the aggrieved party would have irretrievably lost the right or legal interest that it seeks to protect and any approaches to court thereafter on that cause of action will be academic and of no direct benefit to the applicant." (*my emphasis*)

30. I am not satisfied that the above can be said of this case. The applicant obtained a judgment sound in money and in foreign currency. The issue of the exchange rate or the so-called geopolitical argument Mr *Bangidza* sought to throw into the fray was never pleaded or stated, even in the certificate of urgency. There is no doubt that the grant of such an order *per se* does not necessarily establish the urgency of the matter. It must still be shown that the matter cannot wait in the sense that if it is not considered urgently, irreparable prejudice would result. In my view, given the order for payment of money issued by this court, it would not be said that the applicant's right or interest would be irretrievably lost if this matter is not heard on an urgent basis. The matter can be dealt with on the ordinary roll with no irreparable prejudice to the applicant.

31. Further, the issue of the degrading or washing away of the said stockpile of coal fines has been raised before this court, even before MAWADZE J (as he then was) in Case No. HCMSV 649/23. There was no dispute that the court struck off the roll the applicant's urgent chamber application, then raising the same argument as before me, for lack of

urgency. It is trite that the court is at liberty to refer to its own records and take notice of their contents. See *Mhungu* v *Mtindi* 1986 (2) ZLR 171. This, however, is not to say that the court must determine the matter on the basis of the circumstances prevailing in those cases. It simply means that the court must be alive to the context of the whole dispute.

32. Since the argument had already been placed before the court, the applicant ought at least to have provided evidence on the current status or condition of the coal fines. That would establish that there are still coal fines to protect after all these years, where it is common cause that it has been raining every rainy season. Simply repeating all that has been said in the previous applications cannot assist in establishing why the court must now intervene on an urgent basis. The applicant's case missed that critical aspect. In the absence of evidence on the condition of the said coal fines, the court could not be asked to intervene on an urgent basis in the dark. In my view, given the context of the current dispute, it cannot be said that the applicant would suffer irreparable prejudice if this matter is not dealt with on an urgent basis.

33. The withdrawal of the initial appeal and the refiling of another within the period provided by the Supreme Court Rules for an appeal to be lodged cannot create any basis for urgency. I do not accept that such conduct *per se* would constitute an abuse of court process, as a litigant is entitled to rectify its papers if it genuinely believes that there are errors to be rectified, just as the applicant did by withdrawing its other applications. Similarly, the argument that the appeal is meritless or hopeless is not a ground for urgency. The court, when considering the requirements of urgency, does not consider the merits or demerits of the appeal itself. That is a consideration of the merits of the application once the first hurdle of urgency has been passed.

**DISPOSITION**

34. I am not satisfied that the applicant managed to establish the urgency of this matter. It has not been shown that the applicant would suffer any irreparable harm if this matter is not heard on an urgent basis. This matter can surely wait. There is no basis set out in the papers to satisfy the requirements for urgency. The argument that the appeal is not *bona*

*fide* or has no prospects of success is not a basis for urgency. It is an issue to be dealt with on the merits of the application. The fact that the applicant seeks to be paid the judgment debt *per se* does not create the urgency contemplated by the rules of court. From the time limit and the harm dimensions, the matter does not meet the test of urgency set out in our law, as remarkably laid out in *Kuvarega* (*supra*) and many other cases.

35. The point *in limine* that this matter is not urgent ought to succeed. Once I have arrived at that decision, I am precluded by the law from dealing with the second issue of the validity of the application, which would only be appropriately dealt with on the ordinary roll. I must terminate my enquiry by an appropriate order striking the matter off the roll of urgent chamber applications on account of lack of urgency.

36. In relation to costs, it is trite that the matter of costs is within the discretion of the court. In the circumstances that I have declined to hear the matter on an urgent basis and given that the legal battle is still raging on with both parties all having incurred some considerable litigation costs, I am of the view that an appropriate order should be that each party bears its own costs. I will, therefore, depart from the general rule that costs should follow the cause, given the circumstances.

37. In the result, I order as follows:

    1. The point *in limine* of lack of urgency raised by the first respondent is upheld.
    2. The application be and is hereby struck off the roll.
    3. Each party shall bear its own costs.

**DEMBURE J:** ……

*Manase & Manase,* applicant's legal practitioners
*Moyo & Nyoni,* first respondent's legal practitioners